PRELIMINARY EXPERT RESEARCH MEMORANDUM / REVIEW COPY

Shenzhen Yiwen Tech Limited v. XGIMI Tech Co., Ltd.

A public analysis of the complaint reports that the asserted designs concern smart glasses and that the accused MemoMind line is promoted as a heads-up-display product. It describes the asserted patents as covering round-frame and rectangular-frame ornamental smart-glasses designs, respectively.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-24	U.S. District Court for the Eastern District of New York	1:26-cv-05220	Design-Patent Infringement; Requested Temporary Restraining Order And Preliminary Injunction

Prepared 2026-08-27. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION	Shenzhen Yiwen Tech Limited v. XGIMI Tech Co., Ltd. et al.
FORUM / DOCKET	U.S. District Court for the Eastern District of New York / 1:26-cv-05220
FILED / TYPE	2026-08-24 / design-patent infringement; requested temporary restraining order and preliminary injunction
PUBLIC DOCKET	Open docket

VERIFIED PUBLIC RECORD

The public docket identifies the parties, docket number 1:26-cv-05220, filing date August 24, 2026, E.D.N.Y., patent cause of action under 35 U.S.C. § 271, and Richard F. Martinelli as plaintiff's filing counsel. It lists the complaint with design-patent exhibits and an August 25, 2026 application for a temporary restraining order and preliminary injunction with claim charts for U.S. Design Patent Nos. D1,140,996 and D1,140,997.

LIKELY RESEARCH PURCHASER

Richard F. Martinelli - Partner, Orrick, Herrington & Sutcliffe LLP; plaintiff's filing counsel. The public docket identifies Martinelli as counsel filing the complaint, TRO/PI papers, and supporting declarations. Treating opening counsel as a potential purchaser is an analytical inference, not a verified purchasing decision.

rmartinelli@orrick.com - publicly printed in the linked professional source; not inferred.

TECHNICAL FRAME

A public analysis of the complaint reports that the asserted designs concern smart glasses and that the accused MemoMind line is promoted as a heads-up-display product. It describes the asserted patents as covering round-frame and rectangular-frame ornamental smart-glasses designs, respectively.

Secondary-source limitation: This is a preliminary public-source technical map, not an opinion on infringement, validity, functionality, damages, or relief. The complaint, the design-patent figures, claim charts, product specimens, marketing materials, and governing legal standard must control. Open public synopsis

REPORTED ASSERTED PATENTS

U.S. Design Patent No. D1,140,996 | U.S. Design Patent No. D1,140,997

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Smart-glasses product configuration

What physical configuration distinguishes the accused head-worn display product from conventional eyewear, including frame front, lenses, bridge, hinge and temple geometry, display module placement, sensors, and battery or electronics packaging?

Potential evidence: Physical exemplars, high-resolution photographs, CAD files, product teardown, manufacturing drawings, marketing images, product specifications, and the patent figures.

02 Ornamental appearance versus technical constraints

Which visible features are selected for appearance and which are driven by optics, electronics, fit, display, antenna, heat, camera-free design, or manufacturing constraints?

Potential evidence: Engineering requirements, optical and electrical layouts, design briefs, CAD history, prototype records, manufacturing documentation, and alternative-design evidence.

03 Visual comparison and consumer perception

How do geometry, proportions, silhouettes, surface transitions, and visible component placement affect the overall visual impression of the patented and accused designs when viewed in ordinary use?

Potential evidence: Patent figures, product specimens, controlled comparative photography, design models, consumer-facing marketing, and, if appropriate, perception-study materials.

04 Wearable-display architecture

How does a heads-up-display smart-glasses architecture interact with the visible product form, and which physical components are necessary to the claimed user experience?

Potential evidence: Optical-engineering drawings, display specifications, component layouts, user manuals, teardown reports, and testimony from product-development personnel.

Questions likely to require expert input

05 Accused-product versions and public launch chronology

Which MemoMind versions, prototypes, campaign images, launch materials, and production units were displayed or sold, and did visible product form vary by version or region?

Potential evidence: Kickstarter materials, archived webpages, release histories, product listings, samples, configuration records, photographs, and third-party reviews.

06 Claim-chart fidelity and image methodology

Do the cited comparative views fairly preserve orientation, scale, lens treatment, perspective, and product configuration, or do image choices obscure material visual differences?

Potential evidence: Original image files, photography protocol, lens and camera metadata, 3D scans, CAD renderings, claim charts, and demonstrative exhibits.

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Jannick P. Rolland

Brian J. Thompson Professor of Optical Engineering and Professor of Optics and Biomedical Engineering, University of Rochester

TECHNICAL FIT

Direct fit for head-worn displays, optical-system design, and the relationship between display architecture and wearable form factor.

RELEVANT WORK

University of Rochester's program identifies her interests as optical-system design, system engineering, and head-worn displays, and identifies her directorship of freeform-optics and optical-design centers.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Optical-engineering expertise does not by itself establish expertise in the legal ordinary-observer test for design-patent infringement.

Source 1

Draft email | rolland@optics.rochester.edu | public email source

02 Thad Starner

Professor, School of Interactive Computing, Georgia Institute of Technology

TECHNICAL FIT

Direct fit for wearable computing, everyday head-worn systems, gesture interfaces, and product implementation history.

RELEVANT WORK

Georgia Tech describes Starner as a wearable-computing pioneer; it reports his work on wearable prototypes and patents, mobile interfaces, and the IEEE wearable-information-systems technical committee. His faculty site describes his Google Glass work and issued patents.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

Wearable-computing experience is highly relevant, but it is not a substitute for industrial-design or consumer-perception expertise.

Source 1 | Source 2

Draft email | thad.starner@cc.gatech.edu | public email source

Candidates 3-4 for further diligence

03 Steven Feiner

Professor of Computer Science, Columbia University; Director, Computer Graphics and User Interfaces Lab

TECHNICAL FIT

Strong fit for augmented-reality and virtual-reality user interfaces, wearable/mobile AR, and evaluation of AR product interaction and display choices.

RELEVANT WORK

Columbia's AR/VR research notice identifies Feiner's Computer Graphics and User Interfaces Lab and describes work designing and implementing AR/VR user-interface prototypes. His course materials identify a current AR and 3D-user-interface course.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

The located public sources establish AR/VR interface expertise, not an opinion on visual-design similarity or smart-glasses mechanical construction.

Source 1 | Source 2

Draft email | feiner@cs.columbia.edu | public email source

04 Gregory F. Welch

Pegasus Professor and AdventHealth Endowed Chair in Healthcare Simulation, University of Central Florida; Director, Synthetic Reality Lab

TECHNICAL FIT

Strong fit for head-mounted AR/VR systems, motion tracking, computer vision, human-computer interaction, and product-level tradeoffs affecting visible wearable form.

RELEVANT WORK

UCF reports that Welch has authored more than 140 publications and holds patents in AR, VR, tracking, graphics, and vision; its 2026 reporting credits him with more than 150 publications and 25 patents.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

His work emphasizes interactive/simulation systems and may require pairing with a product-design specialist for appearance-focused questions.

Source 1 | Source 2

Draft email | welch@ucf.edu | public email source

Candidates 5-6 for further diligence

05 Doug A. Bowman

Frank J. Maher Professor of Computer Science, Virginia Tech; Principal Investigator, 3D Interaction Group

TECHNICAL FIT

Strong fit for virtual and augmented reality, 3D user interfaces, immersive experience, and how physical display/input constraints affect user interaction.

RELEVANT WORK

Virginia Tech identifies Bowman's research in VR, AR, 3D user interfaces, HCI, and virtual environments. His group describes work evaluating XR interfaces, visual search, gaze interaction, and spatial manipulation; he co-authored the book 3D User Interfaces: Theory and Practice.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

The public record reviewed centers on 3D interface design rather than the design-patent comparison framework.

Source 1 | Source 2 | Source 3

Draft email | dbowman@vt.edu | public email source

06 Joseph J. LaViola Jr.

Charles N. Millican Professor of Computer Science, University of Central Florida; Director, Interactive Computing Experiences Research Cluster

TECHNICAL FIT

Strong fit for 3D user interfaces, virtual and augmented reality, touch interaction, interactive graphics, and prototype implementation.

RELEVANT WORK

UCF describes LaViola's research in pen/touch computing, 3D user interfaces, VR/AR, and multimodal interaction and identifies his book 3D User Interfaces: Theory and Practice and IEEE Virtual Reality Academy recognition.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

His research profile is more strongly tied to interaction techniques than fashion/industrial design or consumer visual similarity.

Source 1 | Source 2

Draft email | jlaviola@ucf.edu | public email source

Candidates 7-8 for further diligence

07 Gerd Bruder

Associate Professor of Computer Science, University of Central Florida

TECHNICAL FIT

Strong fit for extended-reality systems, display optics, vision science, 3D user interfaces, perception, and human factors in head-worn systems.

RELEVANT WORK

UCF describes Bruder's work in AR, mixed reality, human factors, perception and cognition, display optics and vision sciences, 3D user interfaces, modeling, and simulation. A recent UCF publication lists his work on real-time magnification in AR.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

The record supports human-factors and optics questions, but not a specific design-patent expert-history record.

Source 1 | Source 2

Draft email | bruder@ucf.edu | public email source

08 Jeremy Bailenson

Thomas More Storke Professor of Communication and founding Director, Virtual Human Interaction Lab, Stanford University

TECHNICAL FIT

Strong fit for the perception and user-experience consequences of virtual and augmented-reality systems, including how wearable displays change user perception and behavior.

RELEVANT WORK

Stanford describes Bailenson as founding director of its Virtual Human Interaction Lab and identifies his research on the psychology of VR and AR and perception. His profile lists current 2025-26 peer-reviewed VR work.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

His work is behavioral/perceptual rather than a direct record in smart-glasses industrial design or product teardown.

Source 1

Draft email | bailenso@stanford.edu | public email source

Candidates 9-10 for further diligence

09 Mark Billinghurst

Professor of Human-Computer Interaction, University of South Australia

TECHNICAL FIT

Strong fit for wearable computing, augmented reality, mobile interfaces, and optical see-through head-mounted displays.

RELEVANT WORK

University of South Australia describes Billinghurst as an internationally recognized AR/VR researcher; University materials identify more than 300 papers on wearable computing, AR, and mobile interfaces. His published HMD work discusses optical design, display architecture, ergonomics, field of view, and user acceptance.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

The public material establishes broad AR/HMD expertise but not a current public expert-witness history.

Source 1 | Source 2 | Source 3

Draft email | mark.billinghurst@unisa.edu.au | public email source

10 Bruce H. Thomas

Professor and Director, Australian Research Centre for Interactive and Virtual Environments, University of South Australia

TECHNICAL FIT

Strong fit for wearable computers, AR/VR, user interfaces, physical interaction, and industry application of wearable technologies.

RELEVANT WORK

University of South Australia identifies Thomas as director of its interactive/virtual-environments research center and describes industry work with BAE Systems, CSIRO, and DST. University and lab materials identify research in AR, VR, wearable computers, user interfaces, and outdoor wearable AR systems.

PUBLIC LITIGATION EXPERIENCE

No specific public litigation engagement is asserted from this bounded review.

POINTS FOR FURTHER DILIGENCE

The public email source is a scholarly publication; counsel should confirm current affiliation and contact details before any outreach.

Source 1 | Source 2 | Source 3

Draft email | bruce.thomas@unisa.edu.au | public email source

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.

- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.

- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.

- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

Schedule a 15-minute conversation

CORE SOURCES

Public docket: https://dockets.justia.com/docket/new-york/nyedce/1%3A2026cv05220/550335

Public professional email source: https://www.orrick.com/en/People/8/7/7/Richard-F-Martinelli

Public technical context source: https://ai-lab.exparte.com/case/dct/nyed/1%3A26-cv-05220/doc/analysis/1

LIMITATIONS

This is a preliminary public-source technical map, not an opinion on infringement, validity, functionality, damages, or relief. The complaint, the design-patent figures, claim charts, product specimens, marketing materials, and governing legal standard must control.

No attorney or expert was contacted. Availability, interest, compensation, and conflicts were not checked.